

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: September 10, 2026

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1.	Nguyen v. Vietship Cargo, Inc. 20-1168653	Before the court is a motion of plaintiff Thuy Nguyen (Plaintiff) to strike and/or tax costs of defendants Vietship Cargo, Inc. and Tai Duc Ta erroneously sued as Ta Duc Tai (collectively, Defendants). As set forth below, the motion is GRANTED IN PART and DENIED IN PART .

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (*Code Civ. Proc.*, § 1033.5(c)(2)-(3).)

If the items on a verified memorandum of costs appear to be proper charges, the memorandum is *prima facie* evidence of their propriety and the burden is on the party contesting them to show they were not reasonable or necessary. (*Foothill-De Anza Comm. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 773-74.) The party challenging costs does not meet this burden by arguing the costs were not necessary or reasonable but must present evidence and prove the costs are not recoverable. (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557; see also *Wagner Farms, supra*, 145 Cal.App.4th at 777-78.)

If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show the charges were reasonable and necessary. (*Foothill-De Anza Comm. College Dist., supra*, 158 Cal.App.4th at 29.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the court to determine. (*Id.* at 29-30.)

Item 1: Filing and Motion Fees

Filing and motion fees are specifically allowed as costs under Code of Civil Procedure section 1033.5(a)(1). The costs claimed appear to be proper charges. Plaintiff failed to show the costs claimed were not reasonable or necessary.

The motion as to Item 1 is **DENIED**.

Item 10: Attorney Fees

Defendants listed \$34,600 in attorney fees in their memorandum of costs without any supporting documentation, any breakdown of the fees incurred, and without specifically stating the basis for claiming such fees. In the Opposition, Defendants cite *Civil Code section 1717* regarding contractual attorney fee provisions, but Defendants point to no attorney fees provision applicable in the instant matter which would entitle them to claim attorney's fees.

Moreover, attorney's fees allowable as costs by contract or law, "shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties." (*Code Civ. Proc.*, § 1033.5(c)(5)(A).) Here, Defendants failed to file any noticed motion seeking attorney fees and the time to file such motion has long passed. (See *Cal. Rules of Ct., rules 3.1702(b)* and *8.104*; ROA 83.)

		Defendants also point to language in the Judgment providing that Defendants are entitled to recover their legal fees and costs incurred in this action. The inclusion of this language in the Judgment was not intended to dispense with the requirement that, to be allowable as costs, fees must be authorized by contract, statute or law. (See <i>Code Civ. Proc.</i>, § 1033.5(a)(10).) The motion as to Item 10 is GRANTED. <i>Items 11 and 12: Court Reporter and Interpreter Fees</i> Plaintiff contends Defendants' request for \$6,422.00 in court reporter fees and \$1,831.00 in interpreter fees should be stricken because, at the outset of trial, the parties agreed on the record to split these costs. Plaintiff offers the declaration of counsel, Timothy L. O'Reilly, who declares "During the course of the trial, the parties orally stipulated, which was put on the record before the court, that the parties have agreed to split the costs of the court reporters and the Vietnamese language interpreters used during the trial." (See O'Reilly Decl., lines 11-13.) The Court's own records confirm the stipulation. The Court's September 9, 2024 Minute Order states "On record, counsel place a stipulation to equally share court reporter and interpreter fees." (See ROA 71.) Defendants offer no evidence demonstrating that, despite the foregoing clear language showing a stipulation to equally share these costs, Defendants intended to reserve their right to later seek allowable costs as the prevailing party. The motion as to Items 11 and 12 is GRANTED. (See <i>Anthony v. Li</i> (2020) 47 Cal.App.5th 816, 824-825 [trial court did not abuse its discretion by taxing court reporter fees as items of costs, where the parties agreed to share the court reporter fees equally, without providing for the later recovery of those shared fees by the prevailing party].) This results in a total cost award to Defendants of \$1,814 (\$44,667 less \$42,853.) <i>Counsel for Plaintiff shall give notice of this ruling.</i>
2.	Boren v. Manly, Stewart & Finaldi 25-1524761	Before the Court are six motions filed by defendants Manly, Finaldi and Stewart (MSF) and John Manly (Manly). The two demurrers to plaintiff Taylor Boren's (Boren) complaint are SUSTAINED as to the 2nd and 3rd causes of action, with 14 days leave to amend, and OVERRULED as to the 4th cause of action. The four are motions for an award of monetary sanctions against Boren pursuant to <i>Code of Civil Procedure</i> §§128.5 and 128.7 are DENIED. Demurrers By MSF and Manly as to 2nd and 3rd Causes of Action

The 2nd cause of action asserts a Failure to Pay Wages Due under *Labor Code §§ 201, 202*. The 3rd cause of action seeks recovery of Waiting Time Penalties for Failure to Pay Wages When Due pursuant to *Labor Code § 203*.

Labor Code §201(a) states, in part: "If an employer discharges an employee, the wages earned and unpaid at the time of discharge are due and payable immediately."

Labor Code §202(a) states, in part: "If an employee not having a written contract for a definite period quits his or her employment, his or her wages shall become due and payable not later than 72 hours thereafter, unless the employee has given 72 hours previous notice of his or her intention to quit, in which case the employee is entitled to his or her wages at the time of quitting."

Labor Code §203 states, in part: "If an employer willfully fails to pay, without abatement or reduction, in accordance with Sections 201, 201.3, 201.5, 201.6, 201.8, 201.9, 202, and 205.5, any wages of an employee who is discharged or who quits, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid or until an action therefor is commenced; but the wages shall not continue for more than 30 days."

Here, plaintiff asserts that according to his compensation agreement, he was entitled to 1% of all fees received for cases on which he worked. Plaintiff does not allege that as of the date of his termination of employment, the 1% bonus payments of fees that had been collected remained unpaid. Instead, the complaint alleges that at some point after his termination, the attorney's fees on the settlements of cases he worked on were paid and at that point in time, because he had worked on the case during his employment, he was entitled to his 1% share.

The narrow legal issue is whether *Labor Code §§201-203* apply to a commission that does not become earned and payable until after termination. Neither side cites a California case addressing this issue. MSF relies on a plain reading of the statutes. Plaintiff relies on a DLSE interpretation.

As a US District Court recently noted in *Carr v. Walmart, Inc.* (C.D. Cal. 2025) 764 F. Supp. 3d 879, 891–92, "Neither party identified caselaw, and the Court knows of none, addressing the issue of whether delayed payment of an incentive bonus earned after termination amounts to a violation of Labor Code Section 201-203."

Based on the plain language of the statutes, it is apparent they were intended to apply to wages owed at the time of termination. *Section 201(a)* which limits applicability to wages earned as of "the time of discharge." *Section 202(a)* refers to paying wages within 72 hours of "the time of quitting." *Section 203* applies to a willful violation of *sections 201 and 202*. Courts have similarly construed the statute.

For example, in *Smith v. Superior Ct.* (2006) 39 Cal.4th 77, 85, the Supreme Court described section 202 as requiring that "all earned and unpaid wages" are due within 72 hours of quitting. The Supreme Court further stated that "A cause of action for section 203 penalties accrues when an employer fails to pay wages on an employee's final workday, not when the wages are actually, albeit belatedly, paid." (*Pineda v. Bank of Am., N.A.* (2010) 50 Cal.4th 1389, 1398, fn. 7, underlining added)

In the opposition, plaintiff seeks an interpretation of these sections that would render language in the statutes surplusage and without meaning. For example, under plaintiff's interpretation, the phrases "the time of discharge" and "the time of quitting" would be disregarded. "If possible, significance should be given to every word, phrase, sentence and part of an act in pursuance of the legislative purpose." (*Select Base Materials v. Board of Equal.* (1959) 51 Cal.2d 640, 645) "A cardinal rule of construction is that every word in a statute is presumably intended to have some meaning and that a construction making some words surplusage is to be avoided." (*Watkins v. Real Estate Commissioner* (1960) 182 Cal.App.2d 397, 400)

The Court finds that the plaintiff's reliance on the DLSE Enforcement Policies and Interpretations Manual, §4.6, and Opinion Letter 1999.01.09 are not persuasive. "Courts must, in short, independently judge the text of the statute, taking into account and respecting the agency's interpretation of its meaning, of course, whether embodied in a formal rule or less formal representation. Where the meaning and legal effect of a statute is the issue, an agency's interpretation is one among several tools available to the court. (*Yamaha Corp. of Am. v. State Bd. of Equalization* (1998) 19 Cal. 4th 1, 7-8) The Court has considered Section 4.6 as well as the Opinion Letter and finds that the analysis of the plain language of the statutes reflect an intention by the Legislature that these statutes apply to wages that are owed at the time of termination or discharge and not to post-termination commissions which become earned upon the post-termination completion of conditions precedent.

Accordingly the two demurrers are **SUSTAINED** as to the 2nd and 3rd causes of action.

Demurrer by MSF to 4th Cause of Action

MSF demurs to the 4th cause of action for Quantum Meruit on the grounds it is barred by the two year statute of limitations.

"Although the statute of limitations on a cause of action for quantum meruit for personal services usually begins to run when those services or the relationship between the parties terminate (Citation), that is not always the case. Where services are provided with the understanding that payment for those services will be made at some time after the termination of those services or upon some contingency, the statute of limitations does not begin to run until that time arrives or contingency

		occurs.” (<i>Zakk v. Diesel</i> (2019) 33 Cal. App. 5th 431, 455–56) Here, plaintiff has sufficiently pled facts to avoid the statute of limitations. While MSF raises an additional new ground for demurrer in its Reply, the Court declines to consider such. Accordingly, the demurrer to the 4th cause of action is OVERRULED. Four Motions for Monetary Sanctions MSF and Manly have each filed two motions for sanctions against plaintiff pursuant to <i>CCP</i> §§128.5 and §128.7. All four motions are based on defendants’ assertion that the “plaintiff has filed a complaint that alleges legally frivolous cause of action that are clearly time barred and pursued in bad faith.” (See page 1, lines 9-10 of: ROA 84 – MSF §128.5 motion; ROA 88 – <i>MSF §128.7 motion</i>; ROA 129 – Manly §128.5 motion; ROA 139 – Manly §128.7 motion) The Court does not find the assertion of the 2nd – 4th causes of action in the complaint to have been frivolous. Further, plaintiff submits copies of the actual notices which were served by the defendants under the safe harbor provisions of the two statutes. The notices were incomplete because they did not contain the time and date of the hearing. Instead, they were either blank or said “TBD.” (Exh. 1 to Soleymani decl. at ROA 143 and ROA 198) This omission is fatal. (<i>Galleria Plus, Inc. v. Hanmi Bank</i> (2009) 179 Cal. App. 4th 535, 538) Accordingly, the four motions for sanctions are DENIED. Defendants’ objections Nos. 1-25 (ROA 151) and objection nos. 1-30 (ROA 211) to the declaration of Navid Soleymani are OVERRULED. Plaintiff’s requests for monetary sanctions are DENIED. <i>Defendants shall give notice.</i>
3.	Raintree Del Prado LLC v. Sheikhan 24-1394670	Defendants Tawnya C. Sheikhan (“Tawnya” individually); and Tatijana N. Sheikhan’s (“Tatijana” individually; Defendants” together with Tawnya) Motion for Summary Judgment, or in the alternative, Summary Adjudication, is GRANTED in part and DENIED in part. Defendant moves for summary judgment/adjudication as to all three of the causes of action (“COA”) in plaintiff Raintree Del Prado LLC’s (“Plaintiff”) Complaint. (<i>Civ. Proc. Code</i> § 437c(p) and (f).) A) COA No. 1 – Breach of Contract “To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage. [Citation.] If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the

complaint or a copy of the written agreement must be attached and incorporated by reference.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal. App. 4th 299, 307.)

Plaintiff alleged that by entering the Lease, Defendants were obligated to care for the Property and were liable for any damages caused thereto by Defendants and/or their guests and/or occupant. (Complaint ¶ 20.) Plaintiff performed all terms and obligations under the Lease. (Complaint ¶ 21.) On 12/07/23, Soza, who was Defendants’ guest, lost control of her vehicle and drove it into a wall on the Property, damaging the wall and the elevator. (Complaint ¶ 22.) Plaintiff was harmed because of Soza’s actions in excess of \$225,000. (Complaint ¶ 23.)

Defendants put forth evidence Soza was acting as an independent contractor for business purposes while on the property. As such, Soza is an “invitee” and not a “guest” under the legal definitions of those words. (See, INVITEE, GUEST, and OCCUPANT, *Black’s Law Dictionary* (12th ed. 2024).) “[A]n invitee is a business visitor who is invited or permitted to enter or remain on the land for a purpose directly or indirectly connected with business dealings between them.” (*Rowland v. Christian* (1968) 69 Cal. 2d 108, 113–14.)

The subject lease agreement specifies in what instances and due to what categories of individuals Defendants as lessees are liable for damages under the lease. For invitees, under the ‘12. REIMBURSEMENT’ section of the Lease Defendants are only liable “(1) damage to doors, windows, or screens; (2) damage from windows or doors left open; and (3) damage from wastewater stoppages caused by improper objects in lines exclusively serving your dwelling. We may require payment at any time, including advance payment of repairs for which you're liable. Delay in demanding sums you owe is not a waiver.” (Complaint, Ex. 1 § 12 – Reimbursement.) Although Defendants are also liable for certain acts of an invitee under the ‘Casualty Loss’ section, under the express terms of the contract, liability appears to be for damages only inside the lessee’s dwelling. (Complaint, Ex. 1 § 25 – RESIDENT SAFETY AND PROPERTY LOSS.)

As the complaint states the damage was to an exterior wall and an elevator, Defendants have met their initial burden of showing they are not liable under the express terms of the contract for damages caused by an invitee. The burden transfers to Plaintiff to show there are triable issues of material fact. (*Civ. Proc. Code § 437c(p)(2)*.)

Plaintiff’s initial argument that Soza’s vehicle was not permitted to be parking in parking structure does not appear to be backed by the specific terms of the lease. Under the terms of the lease, “guest must park in guest parking only.” (Opposition, Ex. 1 at RT LEASE 029 § 8.) Again, Soza was an invitee and not a guest. Notably, other sections specifically use the terms “guest” and “invitee” supporting the intent of the drafter that these terms were different. (Opposition, Ex. 1 at RT LEASE 029 §§ 7, 9.)

However, Soza did not have a driver's license, yet drove a vehicle on the Property, which was 'unlawful conduct' of an invitee, which would be a violation of the policies. (Opposition, Ex. 1 at RT LEASE 034 § 39.)

Additionally, under the terms of the lease, Defendants are liable for damages caused by invitees to "doors." There is no specific delineation under the terms of the lease that the covered damage is only to doors inside of an apartment versus to any door on the property. Defendant has produced evidence that the elevator door was damaged as the result of Defendant's invitee (Soza) driving into the wall and damaging parts of the elevator, including the elevator door. (Opposition, Ex. 4.) There is enough admissible evidence to support a triable issue of fact as to whether Defendants are liable for at least some portion of the damage Soza caused.

Defendants also argue this lawsuit is not the proper remedy for a breach of the Lease as the remedies "only" include eviction, holdover damages, the reporting unpaid rent to reporting agency, lockout, forfeiture of rental discounts, the payment of unpaid rent, including the remaining rent for the lease term under Lease § 32. However, that section only applies to Defendants and any guest or occupant. It does not apply to invitees. That section, entitled "Default By Resident," involves several defaults. As cited by Defendants, "[a] breach of a lease gives rise to contractual damages in accordance with the provisions of the lease. . ." (*Glendale Fed. Bank v. Hadden* (1999) 73 Cal. App. 4th 1150, 1156.) Further, "[t]he whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other." (*Civ. Code § 1641*.) The specific terms of the Lease require reimbursement for specific damages in specific instances (Sections 12 and 25). The failure to reimburse Plaintiff for damages under the Lease would be a breach of contract.

There are sufficient triable issues of material fact to **DENY** the motion as to this COA.

B) COA No. 2 – Negligence

"The elements of a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.' " (*Ladd v. Cty. of San Mateo* (1996) 12 Cal. 4th 913, 917.) "[T]he existence of a duty is a question of law for the court." (*Kentucky Fried Chicken of Cal., Inc. v. Superior Court* (1997) 14 Cal. 4th 814, 819.)

Plaintiff alleges Soza did not have a valid driver's license at the time of the incident and that Defendants should not have allowed Soza to drive into the parking lot. (Complaint ¶ 27.) Under the terms of the Lease, Defendants and Soza owed a duty to Plaintiff not to engage in activities or behavior which may threaten the rights, comfort, health, safety, or convenience of others on the Property. (Complaint ¶ 28.)

Defendants were liable for the behavior of Soza and the damage Soza caused. (Complaint ¶ 29.) The incident disturbed the comfort, safety, and/or convenience of other tenants. (Complaint ¶ 30.) Defendants are therefore liable for the damages. (Complaint ¶ 31.)

Defendants argue Soza was an independent contractor and as such, they are not liable for injuries caused by the contractor's negligence. "At common law, a person who hired an independent contractor generally was not liable to third parties for injuries caused by the contractor's negligence in performing the work." (*Srithong v. Total Inv. Co.* (1994) 23 Cal. App. 4th 721, 725.) Soza's work was as a housecleaner, which had nothing to do with driving a vehicle and Soza's work had been completed at the time of the incident as she was leaving the Property when the incident occurred. Defendants have met their initial burden of showing the lack of duty of care for the actions of an independent contractor. The burden transfers to Plaintiff to show triable issues of fact remain.

Plaintiff argues a duty of care under *Civ. Code* § 1714(a):

"(a) Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself." (*Civ. Code* § 1714.)

"[A]s to foreseeability, ... the court's task in determining duty 'is not to decide whether a particular plaintiff's injury was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed....' " [Citations.] For purposes of duty analysis, " 'foreseeability is not to be measured by what is more probable than not, but includes whatever is likely enough in the setting of modern life that a reasonably thoughtful [person] would take account of it in guiding practical conduct.' ... [I]t is settled that what is required to be foreseeable is the general character of the event or harm—e.g., being struck by a car while standing in a phone booth—not its precise nature or manner of occurrence." ' (*Kesner v. Superior Ct.* (2016) 1 Cal. 5th 1132, 1145.)

Plaintiff argues Defendants were aware of Soza's lack of driving experience as Soza told Tatijana she had "just started driving," and that Soza "couldn't drive inside because [she] had barely started driving." (Opposition, Ex. 3 at p. 15:22-25.) Tatijana drove the vehicle into the parking structure for Soza. Instead of driving the vehicle back out, Tatijana asked Soza if Soza could drive the vehicle out and Soza responded she would try. (Opposition, Ex. 3 at p. 14:24-15:3.) Soza then got into the accident as she was driving the vehicle out. The question is whether the accident was foreseeable when Tatijana was aware Soza had just started driving and did not drive inside parking structures, and Tatijana drove the vehicle into the structure herself,

but accepted Soza's statement that she would try to drive out instead of driving the vehicle out herself. The "going and coming rule" might alleviate Defendants' liability for Soza's negligence, however it does not alleviate Tatijana's liability for her own acts of negligence.

The motion is **DENIED** as to Tatijana on this COA.

Although Tawnya is a signatory to the Lease, there is no evidence Tawnya was involved with moving the vehicle into/out of the structure. The motion is **GRANTED** as to Tawnya.

C) COA No. 3 – Indemnification

"Express indemnity refers to an obligation that arises "by virtue of express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances." [Citation.] Express indemnity generally is not subject to equitable considerations or a joint legal obligation to the injured party; rather, it is enforced in accordance with the terms of the contracting parties' agreement. [Citation.] In the context of noninsurance indemnity agreements, if a party seeks to be indemnified for its own active negligence, or regardless of the indemnitor's fault, the contractual language on the point "must be particularly clear and explicit and will be construed strictly against the indemnitee." [Citations.] In this sense, express indemnity allows contracting parties "great freedom to allocate [indemnification] responsibilities as they see fit," and to agree to "protections beyond those afforded by the doctrines of implied or equitable indemnity." (Prince v. Pac. Gas & Elec. Co. (2009) 45 Cal. 4th 1151, 1158.)

"Indemnity either imposes the entire loss on one of two or more tortfeasors or apportions it on the basis of comparative fault. Contribution, on the other hand, is a creature [] of statute [] and distributes the loss equally among all tortfeasors. The former requires a determination of fault on the part of the alleged indemnitor; the latter requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment. Where a right of indemnity exists there can be no right of contribution. (Code Civ.Proc., § 875, subd. (f).) A right of contribution can come into existence only after rendition of a judgment declaring more than one defendant jointly liable to the plaintiff. (Code Civ.Proc., § 875, subd. (c).)" (Coca-Cola Bottling Co. v. Lucky Stores, Inc. (1992) 11 Cal. App. 4th 1372, 1378 ["Coca-Cola"].) "In view of such subordination, a resolution of the loss-sharing claims of multiple tortfeasors are most often completely resolved by a comparative indemnification cross-complaint in the underlying action rather than by a post judgment claim for contribution. [Citation.] However, it does not follow that a defendant is limited to such procedure against its co-defendants; nor do we see any reason to conclude that one defendant who unsuccessfully seeks indemnification is prohibited from thereafter seeking contribution if the statutory preconditions are met. The statute prohibits contribution only if a right to indemnity has been established. (Code Civ.Proc., § 875, subd. (f).) In other words, a defendant cannot

recover under both procedures, but there is no reason to deny a right to at least one of them." (*Id.*, at 1379.)

"[I]t has been said that if one seeks, in a noninsurance agreement, to be indemnified ... regardless of the indemnitor's fault ... language on the point must be particularly clear and explicit and will be construed strictly against the indemnitee." (*Morlin Asset Mgmt. LP v. Murachanian* (2016) 2 Cal. App. 5th 184, 191.)

Plaintiff alleges that under the Lease, Defendants are required to indemnify Plaintiff against all damages arising out of "[Soza's] negligent conduct." (Complaint ¶ 36.)

Defendants correctly point out the indemnification clauses in the Lease do not apply to the facts of this matter. Under the specific terms, the first indemnification clause only applies to tenants and their guests and occupants, not to invitees. (Opposition, Ex. 1 at RT LEASE 010 § 41.) While the second indemnification clause does apply to invitees, it only applies to damage within the apartment for failure to properly maintain heat which might cause broken water piper. Opposition, Ex. 1 at RT LEASE 007.)

As the indemnification language does not require Defendants to indemnify Plaintiff under the circumstances of the incident, Defendants have met their initial burden. Plaintiff did not meet the transferred burden on this COA.

The motion is **GRANTED** as to this COA.

Defendants to give notice.

Plaintiff's Objections to Lowery Decl.:

Sustained as to no. 1 (lacks foundation, hearsay, no authentication, lacks personal knowledge).

Plaintiff's Objections to Tatijana Sheikhan Decl.:

Sustained as to nos. 1 – 2 (argumentative, calls for legal conclusion).

Overruled as to nos. 3 – 7 (personal knowledge/experience).

Plaintiff's Objections to Tanya Sheikhan Decl.:

Sustained as to no. 1 (argumentative, calls for legal conclusion).

Overruled as to nos. 2 – 4 (personal knowledge).

Defendants' Objection to Sohovich Decl.:

Overruled as to no. 1 (business records).

4. Hasan v. Hasan
24-1408848

Before the court is a motion for judgment on the pleadings by defendants Malik Hassan (Malik) and Seeme Hasan (Seeme) as to the First Amended Complaint (FAC) filed by plaintiffs Muhammad Ali Hasan (Ali) and Jennie Virgilio (Jennie). The motion is **GRANTED** with 14 days leave to amend, as set forth herein.

A MJOP has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by *CCP § 438*, the rules governing demurrers apply. (Rutter CPBT § 7:275-277; *C.C.P. § 438(d)*) ["The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice...."])

1st Cause of Action: Breach of Contract and 2nd Cause of Action: Specific Performance

The statute of limitations for breach of an oral contract is two years. (*Code of Civil Procedure §339(1)*.) Similarly, the statute of limitations for specific performance of an oral contract is two years. (*Ibid.*)

Based on the allegations in the FAC, the within action arises from a dispute between two parents and their son and daughter in law. Plaintiffs (son and daughter in law) allege that Malik and Seeme (parents to Ali) made a "verbal promise" to them that they could "live rent free at the property, did not have to pay any utilities, HOA assessments, Insurance or Taxes, can purchase the Property, at any time, at their convenience for the then existing July 2016 Fair Market Value of \$1.5 Million dollars, provided they fix up and maintain the property in good condition, until they purchased the Property." (FAC ¶7(a).) Plaintiffs allege they made substantial repairs to the property as required under the agreement.

At the end of 2018, the plaintiffs exercised their option to purchase the property by informing Malik that they were now ready to purchase the property at the agreed price of \$1.5 million dollars. (FAC ¶13) However, Malik rejected plaintiffs' offer to buy. (FAC ¶15) "A contract cause of action does not accrue until the contract has been breached." (*Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1042.) "It is the general rule that a cause of action accrues when a suit may be maintained thereon, and the statute of limitations then begins to run." (*Maguire v. Hibernia Sav. & Loan Soc.* (1944) 23 Cal. 2d 719, 733) Here, when Malik rejected Ali's offer to buy the property pursuant to the terms of their agreement, the limitations period began to run.

On 6/24/24, plaintiffs filed the instant action asserting the defendants had breached the agreement to sell. This was well past the two year statute of limitations.

In opposition, plaintiffs argue there is an equitable basis for tolling the statute of limitations. As to equitable estoppel, such "comes into play only after the limitations period has run and addresses ... the circumstances in which a party will be estopped from asserting the statute of limitations as a defense to an admittedly untimely action

because his conduct has induced another into forbearing suit within the applicable limitations period. [Equitable estoppel] is wholly independent of the limitations period itself and takes its life ... from the equitable principle that no man [may] profit from his own wrongdoing in a court of justice.' " ... Thus, equitable estoppel is available even where the limitations statute at issue expressly precludes equitable tolling..." (*Lantzy v. Centex Homes* (2003) 31 Cal. 4th 363, 383-84.) However, the opposition does not point to allegations in the FAC supporting this equitable estoppel and the Court did not find such.

Plaintiffs also mention that equitable tolling extends the statute of limitations. (Op. at 14:11-23) Again, the opposition does not cite to such allegations in the FAC. Overall, the opposition does not cite to allegations in the FAC supporting a claim for extension of the statute of limitations based on equitable grounds.

Accordingly, the motion is **GRANTED** as to 1st and 2nd causes of action, with 14 days leave to amend.

3rd Cause of Action – Declaratory Relief

To state a cause of action for declaratory relief, Plaintiff must allege: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.)

"Declaratory relief operates prospectively, serving to set controversies at rest. If there is a controversy that calls for a declaration of rights, it is no objection that past wrongs are also to be redressed; but there is no basis for declaratory relief where only past wrongs are involved. Hence, where there is an accrued cause of action for an actual breach of contract or other wrongful act, declaratory relief may be denied." [Emphasis added.] (*Osseous Techs. of Am., Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal. App. 4th 357, 366.) "Moreover, under Code of Civil Procedure section 1061, "[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." This is a discretionary determination, subject to reversal only if that discretion is abused." (*Otay Land Co. v. Royal Indem. Co.* (2008) 169 Cal. App. 4th 556, 563.)

Here, the alleged dispute over whether there was a breach of the agreement to sell the property is the subject of the breach of contract cause of action and is barred by the SOL. The statute of limitations for declaratory relief actions is governed by the underlying claim. (See *Maguire v. Hibernia Savings & Loan Soc.* (1944) 23 Cal.2d 719, 734.)

Further, the assertion that Ali is a 33.3% owner of the property is based on the assertion that the property was improperly transferred from the two Spendthrift Trusts (in which he was a 33.3% beneficiary) into the Falcon Living trust in which he was not a beneficiary. (FAC

		¶¶37, 40 and 41) This describes a dispute about an event that took place in the past. Similarly, the request to have the court determine the prior transfer of the property from the two Spendthrift Trusts to the Falcon Trust is void describes a dispute about a past wrong. As Plaintiffs fail to allege an existing controversy, the motion is GRANTED as to the 3rd cause of action for Declaratory Relief, with 14 days leave to amend. 4th Cause of Action – Quiet Title The elements of a cause of action for quiet title are: (i) a description of the property including both its legal description and its street address or common designation; (ii) the plaintiff’s title and the basis upon which it is asserted; (iii) the adverse claims as against which a determination is sought; (iv) the date as of which a determination is sought and, if other than the date the complaint is filed, a statement why the determination is sought as of that date; and (v) a prayer for determination of plaintiff’s title against the adverse claims. (<i>Cal. Civ. Proc. Code § 761.020.</i>) “It has been held consistently that the owner of an equitable interest cannot maintain an action to quiet title against the owner of the legal title.” (<i>Stafford v. Ballinger</i> (1962) 199 Cal. App. 2d 289, 294–95; see also, <i>Lewis v. Superior Ct.</i> (1994) 30 Cal. App. 4th 1850, 1866.) Here, the FAC alleges: “Plaintiffs own an equitable interest in the property by virtue of the Verbal Promise and seek to quiet title against any and all adverse claims of Defendants and their various Trusts, which they improperly treated as their own personal individual assets.” (FAC ¶48) Because plaintiffs allege an equitable interest in the property, the quiet title action is insufficiently pled. Therefore the motion is GRANTED as to the 4th cause of action, with 14 days leave to amend. Defendants’ request for judicial notice is GRANTED, as to the existence of the documents. Plaintiffs’ request for monetary sanctions is DENIED. <i>Defendants shall give notice of this ruling.</i>
5.	Keno Capital, LLC v. Oakleaf Holding LLC 23-1313683	Cross-Defendants Keno Capital, LLC and Jeremy Jergensen’s (“CD” together) motion to strike the cross-complaint filed by defendants/cross-complainants Oakleaf Holding, LLC, Orchid Management LLC, and John L. Sorensen (“Defendants”) is GRANTED. Defendants filed their original answer to the original complaint in this matter on 05/02/23. They subsequently filed two more answers to the amended complaints on 02/27/26 and 03/23/26; the cross-complaint was not filed until 03/23/26, almost three years after the original answer. The original trial date in this action was set on 08/25/23. (ROA 30.)

		Pursuant to <i>Civ. Proc. Code § 428.50(b)</i> and <i>(c)</i>, once a trial date has been set, a party must first obtain leave from the court to file a cross-complaint. Defendants did not request or receive leave from the court prior to filing their cross-complaint. As such the motion is proper. The motion is GRANTED and the cross-complaint is ordered to be STICKEN. <i>Counsel for CD to give notice.</i>
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